

Date Of Decision: 20.08.2024 vs Diksha Sharma & Anr on 20 August, 2024

Author: Sandeep Sharma

Bench: Sandeep Sharma

2024:HHC:7067 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr.MMO No.682 of 2024 Date of Decision: 20.08.2024 .

.....Petitioner Versus Diksha Sharma & Anr. Navneet Kumar

.....Respondents _____
Coram:

Hon'ble Mr. Justice Sandeep Sharma, Judge. Whether approved for reporting? 1 For the petitioner: Mr. H.R.Jhingta, Advocate.

For the Respondents: Mr. Rajan Kahol, Mr. Vishal Panwar and Mr. B.C. Verma, Additional Advocate Generals, with Mr. Ravi Chauhan, Deputy Advocate General, for respondent No.2-State.

Mr. Sanjay Bhardwaj,
respondent No. 1.

Advocat

HC Neeraj No. 107, PS West Shimla, H.P.
present in person.

Sandeep Sharma, Judge(oral):

By way of instant petition filed under Section 528 of the Bharatiya Nagrik Suraksha Sanhita, prayer has been made on behalf of the petitioner for quashing of FIR No.33 of 2019, dated 03.03.2019, under Sections 354, 354-D, 506 & 201 of the Indian Penal Code and Section 27 of Arms Act, registered at Police Station Shimla West, Shimla, H.P., as well as consequent proceedings, if any, pending Whether the reporters of the local papers may be allowed to see the judgment?

2024:HHC:7067 adjudication in the competent court of law, on the basis of the compromise arrived inter se parties, whereby they have resolved to .

settle the dispute amicably inter se them.

2. Precisely, the facts of the case, as emerge from the record are that FIR sought to be quashed in the instant proceedings came to be lodged at the behest of respondent No. 1 Ms. Diksha Sharma (hereinafter to be referred to as 'complainant'), who alleged that in the year 2016, she had joined Coaching Centre i.e. Navneet Classes, Chakkar, for the preparation of UPSC exam, but petitioner-

accused Navneet Kumar, who was the owner of aforesaid Coaching Centre started behaving indecently. She alleged that petitioner-

accused not only repeatedly pressurized her to solemnize marriage with him, but also stalked her. She alleged that in January, 2018, petitioner-accused attempted to scare her by showing pistol, but once her father reached on the spot, petitioner-accused left her house. In the aforesaid background, FIR, as detailed herein above, came to be lodged against the petitioner-accused. Apart from above, petitioner-

accused had been claiming that he has solemnized marriage with the complainant, and also instituted proceedings under Section 9 of Hindu Marriage Act for restitution. Since, factum of marriage was seriously disputed by the complainant, petition under Section 9 of Hindu Marriage Act having been filed by the petitioner-accused was 2024:HHC:7067 dismissed vide order dated 09.09.2022. Being aggrieved with afore order, petitioner approached this Court by way of CMPMO No. 505 of .

2022, which ultimately came to be decided on 21.08.2023, on the basis of compromise arrived inter se parties, whereby both the parties have resolved to settle the dispute amicably inter se them. In afore proceedings, both petitioner-accused and complainant categorically stated on oath before the Court that they have entered into compromise, whereby they have agreed to withdraw all the cases filed by them against each other. Complainant categorically stated before this Court on 21.08.2023 that she shall withdraw the FIR lodged by her against the petitioner-accused and if need be, she would make herself available before competent Court of law in a petition to be filed by the petitioner-accused under Section 482 of Code of Criminal Procedure for quashing of FIR. In view of aforesaid, petitioner-accused has approached this Court in the instant proceedings for quashing of FIR as well as consequent proceedings, if any, pending adjudication in the competent court of law.

3. Pursuant to order dated 22.07.2024, respondent-State has filed status report under the signatures of SHO, PS Boileauganj, District Shimla, H.P., wherein it has been categorically stated that complainant has specifically denied factum of compromise, if any, arrived inter se parties.

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4. Complainant has come present in Court and is being represented by Mr. Sanjay Bhardwaj, Advocate. She states on oath .

that she of her own volition and without any external pressure has entered into compromise with the petitioner-accused, whereby both the parties have resolved to settle the dispute amicably inter se them.

She states that since FIR sought to be quashed is a result of misunderstanding, coupled with the fact that petitioner-accused has already apologized for his behaviour and has further undertaken not to repeat such act in future, as such, she shall have no objection in case, prayer for quashing of FIR made through instant petition is accepted and petitioner-accused is acquitted of charges framed against him. She also admitted factum of her having given statement to this Court on 21.08.2023 in CMPMO No. 505 of 2022 that in view of compromise arrived inter se her and the petitioner-accused in a petition filed under Section 9 of the Hindu Marriage Act, she shall have no claim of any kind against petitioner and all the cases filed by her against the petitioner shall be withdrawn.

5. After having heard aforesaid statement made on oath by the complainant, Mr. Rajan Kahol, learned Additional Advocate General, fairly states that no fruitful purpose would be served in case FIR as well as consequent proceedings pending adjudication in the competent court of law are allowed to sustain. He further states that 2024:HHC:7067 otherwise also chances of conviction of the petitioner-accused are very remote and bleak on account of statement made by the .

complainant on oath and as such, this court may proceed to pass appropriate orders.

6. The question, which now needs consideration is whether FIR in question can be ordered to be quashed when Hon'ble Apex Court in Narinder Singh and others versus State of Punjab and another (2014) 6 SCC 466 has specifically held that power under Section 482 Cr.P.C (hereinafter to be referred to as the "Code") is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc., as such offences are not private in nature and have a serious impact on society?

7. At this stage, it would be relevant to take note of the judgment passed by Hon'ble Apex Court in Narinder Singh (supra), whereby the Hon'ble Apex Court has formulated guidelines for accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings. Perusal of judgment, referred above, clearly depicts that in para 29.1, Hon'ble Apex Court has returned the findings that power conferred under Section 482 Cr.P.C is to be distinguished from the power which lies in the Court to compound the offences under 2024:HHC:7067 Section 320 Cr.P.C. No doubt, under Section 482 Cr.P.C, the High Court has inherent power to quash criminal proceedings even in those .

cases which are not compoundable and where the parties have settled the matter between themselves, however, this power is to be exercised sparingly and with great caution. In para Nos. 29 to 29.7 of the judgment Hon'ble Apex Court has laid down certain parameters to be followed, while compounding offences.

8. Careful perusal of para 29.3 of the judgment suggests that such a power is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder,

rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Apart from this, offences committed under special statute like the Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly arising out of commercial transactions or arising out of matrimonial relationship or family disputes may be quashed when the parties have resolved their entire disputes among themselves. Aforesaid view taken by Hon'ble Apex Court has been further reiterated in *Gian Singh v. State of Punjab and anr.* (2012) 10 SCC 303.

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9. The Hon'ble Apex Court in case *Gian Singh supra* has held that power of the High Court in quashing of the criminal .

proceedings or FIR or complaint in exercise of its inherent power is distinct and different from the power of a Criminal Court to compound the offences under Section 320 Cr.P.C. Even in the judgment passed in *Narinder Singh's* case, the Hon'ble Apex Court has held that while exercising inherent power of quashment under Section 482 Cr.P.C the Court must have due regard to the nature and gravity of the crime and its social impact and it cautioned the Courts not to exercise the power for quashing proceedings in heinous and serious offences of mental depravity, murder, rape, dacoity etc. However subsequently, the Hon'ble Apex Court in *Dimpey Gujral and Ors. vs. Union Territory through Administrator, UT, Chandigarh and Ors.* (2013) 11 SCC 497 has further reiterated that continuation of criminal proceedings would tantamount to abuse of process of law because the alleged offences are not heinous offences showing extreme depravity nor are they against the society. Hon'ble Apex Court further observed that when offences are of a personal nature, burying them would bring about peace and amity between the two sides.

10. Hon'ble Apex Court in its judgment dated 4th October, 2017, titled as *Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and others versus State of Gujarat and Another*, passed in 2024:HHC:7067 Criminal Appeal No.1723 of 2017 arising out of SLP(Crl) No.9549 of 2016, reiterated the principles/ parameters laid down in *Narinder .*

Singh's case *supra* for accepting the settlement and quashing the proceedings.

11. In the case at hand also, offences alleged to have been committed by the petitioner-accused do not involve offences of moral turpitude or any grave/heinous crime, rather same are petty offences, and as such, this Court deems it appropriate to quash the FIR as well as consequential proceedings thereto, especially keeping in view the fact that the petitioner and complainant have compromised the matter inter se them, in which case, possibility of conviction is remote and no fruitful purpose would be served in continuing with the criminal proceedings.

12. Consequently, in view of the aforesaid discussion as well as law laid down by the Hon'ble Apex Court (*supra*), FIR No.33 of 2019, dated 03.03.2019, under Sections 354, 354-D, 506 & 201 of the

Indian Penal Code and Section 27 of Arms Act, registered at Police Station Shimla West, Shimla, H.P. , as well as consequent proceedings, if any, pending adjudication in the competent court of law are quashed and set aside. Accused is acquitted of the charges framed against him.

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13. The petition stands disposed of in the aforesaid terms, alongwith all pending applications.

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(Sandeep Sharma) ,

Judge

August 20, 2024
(sunil)

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